SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 5033 of 2021 (YEAR: 2022)

CORAM: D.Y. CHANDRACHUD, A.S. BOPANNA

Vodafone Idea Cellular Ltd.
... Appellant(s) / Petitioner(s)
Versus
Ajay Kumar Agarwal
... Respondent(s)

Acts Referred:	Consumer Protection Act, 1986, Indian Telegraph Act, 1885
Sections:	Section 7B Telegraph Act, Section 3 Consumer Protection

JUDICIAL HEADNOTE & SUMMARY

Held that consumer disputes against telecom service providers are maintainable before consumer forums despite Section 7B of the Indian Telegraph Act.

RATIO DECIDENDI

The Court held that: Held that consumer disputes against telecom service providers are maintainable before consumer forums despite Section 7B of the Indian Telegraph Act. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Vodafone Idea Cellular Ltd. v. Ajay Kumar Agarwal (Civil Appeal No. 5033 of 2021) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Consumer Protection Act, 1986, Indian Telegraph Act, 1885, particularly Section 7B Telegraph Act, Section 3 Consumer Protection. Held that consumer disputes against telecom service providers are maintainable before consumer forums despite Section 7B of the Indian Telegraph Act.

OPERATIVE ORDER

ORDER: Decided